

which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (*Ibid.*) Therefore, this action is stayed pending the completion of arbitration.

2.

CASE #	CASE NAME	HEARING NAME
CVME2512835	WHITTED VS INLAND REGIONAL CENTER	MOTION TO STRIKE 1 ST AMENDED PETITION

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVME2511863	WHITTED VS COASTAL DEVELOPMENTAL SERVICES FOUNDATION	DEMURRER ON 1 ST AMENDED PETITION FOR WRIT OF MANDATE

Tentative Ruling: Hearing Required.

4.

CASE #	CASE NAME	HEARING NAME
CVME2511863	WHITTED VS COASTAL DEVELOPMENTAL SERVICES FOUNDATION	MOTION TO STRIKE 1 ST AMENDED PETITION FOR WRIT OF MANDATE

Tentative Ruling: Hearing Required.

5.

CASE #	CASE NAME	HEARING NAME
CVME2510328	MARSHALL VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEE

Tentative Ruling: Motion for Attorney’s Fees granted in the reasonable amount of \$27,696.50 and Costs of \$2,559.80.

Plaintiff moves for attorney fees consisting of \$29,114.50, with a 1.2 multiplier of \$5,822.90 for a total of \$34,937.40, and costs of \$2,559.80. The parties resolved the case at mediation. He argues he is the prevailing party and is entitled to counsel’s lodestar. He argues that the hourly rates and time spent are reasonable. He argues that a 1.2 multiplier should be granted based on the contingent risk of the case, the exceptional settlement, and the delay in payment. He also argues he is entitled to time on this fee motion.

In opposition, Defendant contends that the fees are unreasonable for the fact that this case settled in six months. It argues that the hourly rates and time spent are high, in light of the fact that there was only two depositions, initial disclosures, and no vehicle inspections. It asserts that the hourly rates are not supported by evidence and not supported for a simple case. It challenges unreasonable and duplicate billing entries, and estimated fees for the motion are unreasonable. It argues the court should issue a negative multiplier is warranted.